

24CHCV03403 24CHCV03403

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LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

SEPTEMBER 16, 2026

MOTION TO QUASH

SERVICE OF PROCESS

Los Angeles Superior Court Case

24CHCV03403

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Motion Filed: 6/16/26

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MOVING PARTY: Defendant Just-N-Time Logistics, LLC ("Moving Defendant")

RESPONDING PARTY: Plaintiff

Juan Carlos Aguilar Ramos ("Plaintiff")

NOTICE: OK

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RELIEF REQUESTED: An
order quashing the service of summons on Moving Defendant.

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TENTATIVE RULING: The motion is denied.

BACKGROUND¿

This is a personal
injury action in which Plaintiff alleges that on 9/27/22, on the 210 Freeway in
Sylmar, CA, Defendants caused their vehicle to collide with Plaintiff's,
causing Plaintiff injury (Compl. p. 5.) On 9/19/24, Plaintiff filed his
complaint, alleging against two named Defendants the following causes of
action: (1) Motor Vehicle Negligence; and (2) General Negligence.

On
10/20/25, Plaintiff filed a proof of service indicating substitute service on
Moving Defendant on 10/16/25. On 6/16/26, Moving Defendant filed the instant
motion to quash. On 6/18/26, Plaintiff filed his opposition. On 9/10/26, Moving
Defendant filed its reply.

ANALYSIS

A defendant may move, "on or before the last day of his or
her time to plead or within any further time that the court may for good cause
allow," to quash the service of summons by alleging a lack of personal
jurisdiction, or to dismiss the action on the ground of inconvenient forum.
(Code Civ. Proc. § 418.10, subd. (a).) A motion to quash must be granted if the
court finds that either (1) there is no basis for exercising personal
jurisdiction over the defendant or (2) service on the defendant was improper. (Ziller
Elecs. Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1229.)

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A.

Timeliness

Here, as a preliminary matter, the Court notes that Moving Defendant brings this motion seven months after the date of purported service. Moving Defendant argues that good cause exists here for the Court to exercise its discretion to consider the untimely motion because “Defendant acted promptly and diligently upon learning that Plaintiff intended to seek an entry of default.” (Def.’s Mot. 4:21–22.) In opposition, Plaintiff argues that “the motion was filed not because Defendant lacked notice of the litigation — it plainly had notice — but as a tactical maneuver to avoid the consequences of its own failure to timely appear.” (Pl.’s Opp. 5:8–10.)

Based on the foregoing, the Court finds good cause to allow Moving Defendant to bring the instant motion to quash past the statutory deadline to do so. Therefore, the Court considers the merits of the parties’ arguments below.

B.

Improper
Service

“If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20, subd. (b).) “Notwithstanding subdivision (b), if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code.” (Id.

at subd. (c).)

“The filing of a proof of service creates a rebuttable presumption that the service was proper.” (Floveyor International, Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 795.) However, “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (Bolkiah v. Superior Court (1999) 74 Cal.App.4th 984, 991.)

Here, the proof of service on file with the Court states that on 10/16/25, Moving Defendant was served via substitute service at a UPS Store located at 20987 N John Wayne Pkwy, Suite B-104 #257, Maricopa, AZ 85139, on an associate named Ciara DOE, authorized to accept service on behalf of Defendant’s authorized agent for service, John Marr Jr. (10/20/25 POS.) Moving Defendant argues that the service was invalid because Mr. Marr passed away on 6/29/25, therefore “Plaintiff’s purported service was directed to a deceased individual and is invalid on that basis alone.” (Def.’s Mot. 3:17–18.) Moving Defendant further argues that “delivering process to an unknown UPS store employee at a mailbox location does not constitute valid personal or substituted service on a limited liability company.” (3:5–7.)

In opposition, Plaintiff argues that the process server made attempts to personally serve Moving Defendant via Mr. Marr at Mr. Marr’s residence, before learning of his death. “Having established that the registered agent was deceased and that personal service at the agent’s home address could not be completed, Plaintiff’s process server then turned to the only remaining business address associated with Defendant in its public filings.” (Pl.’s Opp. 4:23–25.) Plaintiff further asserts that “the UPS Store address at 20987 N. John Wayne Pkwy, Suite B-104 #257, Maricopa, AZ 85139 is the same address listed as the principal place of business in Defendant’s own Arizona Corporation Commission entity records.” (Id. at 2:23–25.) Plaintiff argues that “Defendant cannot simultaneously hold out an address to the world as its place of business and then disclaim that address as invalid for service purposes.” (Id. at 3:15–17.) Plaintiff maintains that service at this address was proper because “Defendant registered its LLC and identified this address as the location from which it conducts its business affairs.” (Id. at 4:4–5.)

In reply, Moving Defendant argues

that “Plaintiff identifies no statute or case holding that a UPS employee becomes an authorized agent for service merely because the mailbox address appears in corporate filings.” (Def.’s Reply 2:18–19.) Moving Defendant argues that a “UPS employee is not among the persons authorized to accept service under Code of Civil Procedure section 416.10 and has no legal or agency relationship with Defendant.” (Def.’s Mot. 5:24–26, citing *Bonita Packing Co. v. O’Sullivan* (1995) 165 F.R.D. 610, 613–615 [“The owner of a private post office box company is not a person who has a sufficient relationship to the renter of a private post office box to assure that the renter will receive actual notice of a pending legal proceeding.”].)

In opposition, Plaintiff argues

that “*Bonita Packing* is distinguishable on a critical ground: in that case, the defendant had not designated the mailbox address as its principal place of business. Here, Defendant’s publicly filed entity records identify this UPS Store address as the principal place of business.” (Pl.’s Opp. 4:12–15.) The Court further notes that *Bonita Packing* was decided by the U.S. District Court for the Central District of California in 1995, prior to the 2018 amendment to Code of Civil Procedure section 415.20 which added subdivision (c), allowing for substitute service to be effectuated on a private mailbox obtained through a commercial mail receiving agency.

Based on the foregoing, the Court

agrees with Plaintiff that “service was properly effectuated by substituted service at Defendant’s own listed principal place of business. Plaintiff diligently attempted personal service before resorting to substituted service.” (Id. at 5:21–23.) Accordingly, the motion is denied.

CONCLUSION

The motion is
denied.